RIGHTS & INTERESTS · 1

Easement

ANSWER · 1

A non-possessory right to use another's land for a specific purpose (e.g., access, utilities) — it does not transfer ownership, only a right of use.

RIGHTS & INTERESTS · 2

Right of Way

ANSWER · 2

A specific type of easement granting the right to pass over another's land.

RIGHTS & INTERESTS · 3

Voluntary Lien

ANSWER · 3

A lien the property owner agrees to, such as a deed of trust securing a mortgage loan.

RIGHTS & INTERESTS · 4

Involuntary Lien

ANSWER · 4

A lien created by law or by a creditor's action without the owner's consent — such as a judgment lien, tax lien, or mechanic's lien.

RIGHTS & INTERESTS · 5

Mechanic's Lien (Colorado)

ANSWER · 5

A lien for unpaid labor or materials on a property. Under Colorado's curative statute (C.R.S. 38-22-109(8)), an unenforced mechanic's lien is generally cured/unenforceable of record after about 13 months.

RIGHTS & INTERESTS · 6

Judgment Lien (Colorado)

ANSWER · 6

Under Colorado's curative statute (C.R.S. 13-52-102), a general judgment lien is generally cured after about 6 years if not renewed — but liens tied to certain federal judgments or child support run much longer (around 20 years).

RIGHTS & INTERESTS · 7

Federal Tax Lien

ANSWER · 7

A lien the IRS can file against a taxpayer's property, generally cured after about 10 years under the curative statute framework. Importantly, an unfiled/unindexed general federal tax lien can still be valid as a "secret lien" against the heirs/devisees of the owner.

RIGHTS & INTERESTS · 8

Covenants, Conditions & Restrictions (CC&Rs)

ANSWER · 8

Private contractual restrictions on how property may be used, typically recorded by a developer or HOA. They run with the land and bind future owners — but they are classified as an "encumbrance," not a "lien," since they don't secure a debt.

RIGHTS & INTERESTS · 9 EXAM-STYLE

How many years after the final payment or performance due date does an unreleased recorded mortgage or deed of trust generally cease to be a lien in Colorado?

ANSWER · 9

15 years

Recorded mortgage/deed of trust → 15 YEARS after the recorded final due date.

C.R.S. §38-39-201. If the final due date can't be determined from the recorded instrument, Colorado provides another method for determining the date.

RIGHTS & INTERESTS · 10 EXAM-STYLE

For how long can a Colorado mechanic's lien continue against the property without commencement of an enforcement action?

ANSWER · 10

6 months

Mechanic's lien ENFORCEMENT action = 6 MONTHS.

C.R.S. §38-22-110 — action must be commenced within six months.

RIGHTS & INTERESTS · 11 EXAM-STYLE

Which of the following is an encumbrance but not necessarily a lien?

A. A mortgage
B. A federal tax lien
C. An easement
D. A judgment lien

ANSWER · 11

An easement

LIEN = secures money. ENCUMBRANCE = anything that burdens title. Easements and CC&Rs are encumbrances that are NOT liens.

General title principle; Colorado standard/pre-printed exceptions treat easements and rights-of-way as encumbrances.

RIGHTS & INTERESTS · 12 EXAM-STYLE

Which of the following liens or encumbrances is involuntary?

A. A financing statement
B. A rent or lease agreement
C. A mortgage lien
D. A mechanic's lien

ANSWER · 12

A mechanic's lien

Owner SIGNED it → voluntary. Imposed BY LAW → involuntary (mechanic's, judgment, tax).

C.R.S. §38-22 (mechanic's liens). Compare with the enforcement deadline and curative period elsewhere in the quizzes.